



VIA Email

June 4, 2026

The Honorable Paul S. Atkins
Chairman
The Honorable Hester M. Peirce
The Honorable Mark T. Uyeda
Commissioners
U.S. Securities and Exchange Commission
100 F Street, NE
Washington, DC 20549-1090

Re: Semiannual Reporting, File No. S7-2026-15, 91 Fed. Reg. 24,968 (May 7, 2026)

Dear Chair and Commissioners:

To give investors adequate time to comment on such an extensive, far-reaching, and dramatic change after more than half a century of practice, Better Markets¹ requests that the Commission extend the comment period by an additional sixty days on the above-referenced proposed rule change.² The proposed rule change would allow public companies to file reports containing material information about their financial performance semiannually instead of quarterly – as they have done since 1970. The current comment period of sixty days is not enough time for the public to comment on a proposed change of this magnitude.

Better Markets looks forward to providing its own substantive comments on the proposed rule change. At this time, however, it simply wants to ensure that all investors have the opportunity to provide comments too. The proposed rule change affects all investors, yet it will be difficult for investors—especially retail investors—to digest the proposal and provide comments within 60 days. The proposal spans 279 pages and includes 58 requests for comment, each with multiple associated questions.³ Investors need more time to have a meaningfully opportunity to comment.

It is noteworthy that when the Commission issued its request for comment regarding the possibility of revising quarterly reporting in 2018, it gave the public 90 days to provide

¹ Better Markets is a non-profit, non-partisan, and independent organization founded in the wake of the 2008 financial crisis to promote the public interest in the financial markets, support the financial reform of Wall Street, and make our financial system work for all Americans again. Better Markets works with allies—including many in finance—to promote pro-market, pro-business, and pro-growth policies that help build a stronger, safer financial system that protects and promotes Americans' jobs, savings, retirements, and more.

² 91 Fed. Reg. 24,968 (May 7, 2026).

³ <https://www.sec.gov/files/rules/proposed/2026/33-11414.pdf>.

comments.⁴ That request did not include a specific rule proposal that would permit semiannual reporting. It was only 30 pages and did not include an economic analysis. Yet it provided a longer comment period than the Commission provided here where the proposal is almost ten times long and substantially more complex. A total of 120 days to comment on the instant proposal, compared to 90 days to comment on the 2018 request for comment, would be reasonable.

The Commission needs to provide enough time to hear from investors for whom quarterly reports matter. Quarterly reports provide investors with timely information about public companies. They “are designed to increase transparency to investors by providing unaudited financial statements and continuing insights into the company’s financial health throughout the year.”⁵ Quarterly reports make it possible for investors to more easily compare companies and their financial performance and future profitability. In this way, quarterly reports provide investors with the material information that they need to make informed investment decisions.⁶

Quarterly reporting is especially important to retail investors. That is because most retail investors lack any other way to obtain information about the public companies in which they may want to invest. “Absent disclosure of information regarding the issuer of securities, average retail investors have no mechanism for distinguishing between high and low quality enterprises, hampering efficient allocation of capital.”⁷ Retail investors therefore greatly rely on and “use the information disclosed in the company’s periodic reports.”⁸ Indeed, “the most important source of information for their investment decisions is the company’s mandatory disclosure documents.”⁹ In light of the importance of quarterly disclosures, the Commission must ensure that retail investors have sufficient time to become aware of the proposal, review the proposal, and provide comments.

Indeed, it is particularly important that the Commission hear from retail investors because the proposal will disproportionately impact them. Institutional investors “can presumably obtain from public companies whatever information they need to make informed investment decisions.”¹⁰ They have the resources and relationships to obtain information on a continuous basis even absent quarterly reporting. But retail investors need the information in companies’

⁴ See *Request for Comment on Earnings Releases and Quarterly Reports*, Exchange Act Release No. 84842 (Dec. 18, 2018), <https://www.sec.gov/files/rules/other/2018/33-10588.pdf>.

⁵ Rachel G. Miller, *A Practice Worth Ending: EPS Guidance Harming Long-Term Growth*, 95 Notre Dame L. Rev. 445, 453 (2019).

⁶ See *id.* at 446.

⁷ Celia R. Taylor, *Capital Market Development in the Emerging Markets: Time to Teach an Old Dog Some New Tricks*, 45 Am. J. Comp. L. 71, 72 (1997).

⁸ Jennifer O’Hare, *Don’t Forget the “G” in ESG: The SEC and Corporate Governance Disclosure*, 64 Ariz. L. Rev. 417, 449 (2022).

⁹ *Id.*

¹⁰ *Id.*

required disclosures.¹¹ “Quarterly reports play a vital role in leveling the playing field among investors with regard to their access to information.”¹² As a result of the “relatively short period of time between quarterly reports, average investors are able to maintain confidence through continual access to meaningful information.”¹³ So the proposal has the potential to exacerbate the “information asymmetries” that are “more acute for retail investors who, unlike market professionals, have little or no ability to gather reliable market information absent disclosure.”¹⁴

For an agency that “has always recognized that it has a special responsibility to protect individual investors, who may lack the sophistication and resources of institutional investors,”¹⁵ it is essential to provide those investors with sufficient time to comment on the proposal.

Conclusion

We respectfully request that the Commission extend the comment period by 60 days and appreciate your attention to this matter.

Sincerely,



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CC: Vanessa A. Countryman
Secretary

¹¹ *Id.*

¹² Miller, 95 Notre Dame L. Rev. at 453

¹³ *Id.*

¹⁴ Charles R. Korsmo, *The Audience for Corporate Disclosure*, 102 Iowa L. Rev. 1581, 1595 (2017).

¹⁵ O'Hare, 64 Ariz. L. Rev. at 449.